

discretion of the Discovery Referee.

5. The parties to meet and confer within fourteen (14) days on a form of Discovery Referee appointment order.
6. In light of the foregoing, the Pending Discovery Motions are taken off calendar and referred to the Discovery Referee, as set forth above.

**8. 9:00 AM CASE NUMBER: C24-02551**

**CASE NAME: ODK CAPITAL, LLC VS. THAI PHAM**

**\*HEARING ON MOTION IN RE: RECONSIDERATION OOF ORDER DENYING MOTION TO SET ASIDE DEFAULT.**

**FILED BY:**

**\*TENTATIVE RULING:\***

Rise Management Group filed its Motion to Set Aside Default Judgment on February 28, 2025 (the "Motion to Set Aside Default Judgment").

#### Background

A default money Judgment was entered herein against defendants and judgment debtors Rise Group Management and Thai Pham ("Defendants") on January 29, 2025 (the "Judgment"). The principal damages awarded were \$35,006.15, with a total judgment of \$37,426.30. *Id.* at ¶16.

On February 28, 2025, Rise Management Group filed a motion to set aside the default Judgment. The motion was denied without prejudice for failure to file a proof of service. See Minute Order dated June 16, 2025.

The motion was re-filed on June 25, 2025 and set for hearing on October 13, 2025. The hearing was continued to December 8, 2025.

At the hearing, the Court noted that the renewed motion was filed at the same time as a prior pending appeal. The moving party was directed to re-file the motion and the hearing date was continued to February 23, 2026.

#### Analysis

Notwithstanding the Court's direction, it does not appear that the motion was re-filed or re-served in advance of the continued hearing date. No further proof of service appears on the Court's docket.

#### Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default Judgment is DENIED, without prejudice.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02590  
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA  
HEARING ON SUMMARY MOTION

FILED BY:

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff, NextGear Capital, Inc., a Delaware Corporation (“NextGear” or “Plaintiff”)’s Motion for Summary Judgment or in the alternative Summary Adjudication. The Motion relates to Plaintiff’s First Amended Complaint for (1) Breach of Demand Promissory Note and Security Agreement, (2) Breach of Individual Guaranty Agreement, (3) Claim and Delivery as Against All Defendants, (4) Conversion as Against All Defendants, and (5) Common Count as Against All Defendants. Defendant US City Auto, Inc., a California corporation doing business as Bay Motors and Defendant Farhad Aminzada (collectively, “Defendants”) have not opposed the Motion.

Although Plaintiff moves for summary judgment or in the alternative summary adjudication, they do not include notice or argument with respect to the fourth cause of action for conversion. Consequently, summary judgment is unavailable.

For the following reasons, Plaintiff’s Motion for summary adjudication is **granted** as to the first, second, third, and fifth causes of action of the First Amended Complaint.

#### Request for Judicial Notice

Plaintiff NextGear requests judicial notice of the order after hearing denying Defendants’ motion to quash the writ of possession and the Declaration of Farhad Aminzada in support of the *ex parte* motion for a stay of the writ of possession. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

The Court notes that although the Request references the “Area Target Case,” Contra Costa Court Case No. C24-03143, both exhibits are from the instant case, Case No. C24-02590.

#### Standard

Code of Civil Procedure (“CCP”) §§ 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material